

25STCV07271 25STCV07271

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Case Number: 25STCV07271 Hearing Date: July 9, 2026 Dept: 617

Dept.

617

Date:

7-9-26

Case

#: 25STCV07271

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Plaintiffs, Liliana Rodriguez, Samuel Alaniz, Alexis Alaniz, and Adriana Alaniz, by and through her Guardian Ad Litem Liliana Rodriguez

RESPONDING

PARTY: Defendants, Paola Hernandez, individually and as Trustee of the Hernandez Paola 2007 Trust

RELIEF

REQUESTED

Demurrer

to Answer

SUMMARY
OF ACTION

Plaintiffs

Liliana Rodriguez, Samuel Alaniz, Alexis Alaniz, and Adriana Alaniz, by and through her Guardian Ad Litem Liliana Rodriguez sued their landlord Paola Hernandez, alleging unlawful rent increases during the COVID-19 pandemic and uninhabitable conditions on the property. Hernandez filed a cross-complaint against Plaintiffs, seeking damages and an offset on any liability based on Plaintiffs' alleged refusal to provide access for repairs and causing waste at the property. She asserts claims for: (1) Declaratory Relief; (2) Offset and Equitable Indemnity; (3) Waste; (4) Breach of Implied Covenant of Good Faith and Fair Dealing; (5) Abatement of Rent/Unjust Enrichment; and (6) Intentional Interference with Repairs and Code Compliance.

RULING: Sustained in part.

Plaintiffs demur to each of the 43

affirmative defenses in Defendants' answer. They argue that the affirmative defenses fail to state facts sufficient to constitute a defense, are uncertain, and are not directed at specific causes of action. Defendants oppose the demurrer, maintaining the sufficiency of their defenses. Plaintiffs concede that affirmative defenses 19, 24-25, 32, and 40 are not affirmative defenses, but denials. They are thus not at issue. Plaintiffs' demurrer is sustained with leave to amend as to defenses 2-22, 24-38, and 40-42. The demurrer is sustained without leave to amend as to defenses 23 and 43. The demurrer is overruled as to defenses 1 and 39.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions

of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”).)

An “answer to a complaint must include ‘[a] statement of any new matter constituting a defense.’ The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’ [Citation.] Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not ‘new matter,’ but only a traverse.” (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546.) Affirmative defenses must aver facts “as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.)

Plaintiffs’ demurrer to affirmative defenses 1 and 39 is overruled. Plaintiffs do not address the first affirmative defense in their memorandum of points and authorities and their argument in support of the demurrer to the thirty-ninth affirmative defense is actually directed to the thirty-eighth affirmative defense for ratification. [Demurrer at p. 14.] The demurrer to these defenses is thus overruled.

The demurrer to the remaining defenses is sustained because they are new matters supported by "terse legal conclusions" or conclusions of fact. (FPI Development, Inc., supra, 231 Cal.App.3d at p. 384.) Defendants are granted leave to amend these defenses, except for affirmative defenses 23 for indemnification and 43 for reservation of further defenses. Defendants and Plaintiffs are not joint tortfeasors. (Gem Developers v. Hallcraft Homes of San Diego, Inc. (1989) 213 Cal.App.3d 419, 430.) An answer can be amended to assert additional affirmative defenses via noticed motion under Code of Civil Procedure section 473, subdivision (a). The Court declines to consider additional attacks on the answer raised for the first time in reply. (Maleti v. Wickers (2022) 82 Cal.App.5th 181, 227-28.)

Defendants are granted 30 days' leave to amend. Defenses conceded by Plaintiffs may be amended as well.

Plaintiffs to give notice.

Dept.
617

Date:
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#: 25STCV07271

Trial
Date: None Set

DEMURRER

MOVING

PARTY: Plaintiffs, Liliana Rodriguez, Samuel Alaniz, Alexis Alaniz, and Adriana Alaniz, by and through her Guardian Ad Litem Liliana Rodriguez

RESPONDING

PARTY: Defendants, Paola Hernandez, individually and as Trustee of the Hernandez Paola 2007 Trust

RELIEF
REQUESTED

Demurrer
to Cross-Complaint

SUMMARY
OF ACTION

Plaintiffs

Liliana Rodriguez, Samuel Alaniz, Alexis Alaniz, and Adriana Alaniz, by and through her Guardian Ad Litem Liliana Rodriguez sued their landlord Paola Hernandez, alleging unlawful rent increases during the COVID-19 pandemic and uninhabitable conditions on the property. Hernandez filed a cross-complaint against Plaintiffs, seeking damages and an offset on any liability based on Plaintiffs' alleged refusal to provide access for repairs and causing waste at the property. She asserts claims for: (1) Declaratory Relief; (2) Offset and Equitable Indemnity; (3) Waste; (4) Breach of Implied Covenant of Good Faith and Fair Dealing; (5) Abatement of Rent/Unjust Enrichment; and (6) Intentional Interference with Repairs and Code Compliance.

RULING: Sustained.

Plaintiffs

demur to each cause of action in Defendants' cross-complaint. They argue that Defendants fail to sufficiently plead their counterclaims. Defendants oppose the demurrer, maintaining the sufficiency of their allegations. Plaintiffs' demurrer is sustained without leave to amend as to the declaratory relief, offset and equitable indemnity, implied covenant of good faith and fair dealing, and abatement of rent/unjust enrichment causes of action. The demurrer is sustained with leave to amend as to the waste and intentional interference with repairs and code compliance claims.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a

pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

First

Cause of Action: Declaratory Relief

Plaintiffs

argue that Defendants’ declaratory relief claim fails because it seeks a judicial declaration of issues that will be resolved by the main action.

“Generally,

an action in declaratory relief will not lie to determine an issue which can be determined in the underlying tort action.” (Cal. Ins. Guarantee Assn. v. Superior Court (1991) 231 Cal.App.3d 1617, 1623.) “The relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.” (Id. at pp. 1623-24.)

The

demurrer to the declaratory relief cause of action is sustained without leave to amend. Defendants seek a judicial declaration that rent increases during periods not governed by local COVID-19 moratorium were lawful, Plaintiffs interfered with access to the property, “delaying code remediation,” and any monetary liability is offset by unpaid rent and Plaintiffs’ damage to the property. [Cross-Complaint ¶ 8.] All of these issues are raised by the complaint and answer and will necessarily be resolved independent of Defendants’ cross-complaint. Defendants cannot seek declaratory relief for identical

issues. Plaintiffs' demurrer to this claim is thus sustained without leave to amend.

Second

Cause of Action: Offset and Equitable Indemnity

Plaintiffs

contend that Defendants' cause of action for offset and equitable indemnity fails because offset is not a cause of action and indemnity is inapplicable.

The

demurrer to the offset and equitable indemnity cause of action is sustained without leave to amend. First, a setoff claim "may only be used defensively." (Constr. Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 197-98.) Second, "[t]here can be no indemnity without joint and several liability by the prospective indemnitor and indemnitee...." (Gem Developers v. Hallcraft Homes of San Diego, Inc. (1989) 213 Cal.App.3d 419, 430.) Defendants and Plaintiffs are not joint tortfeasors. The demurrer to this claim is therefore sustained without leave to amend.

Third

Cause of Action: Waste

Plaintiffs

argue that Defendants' waste claim fails because their allegations are conclusory.

The

demurrer to the waste cause of action is sustained with leave to amend. "The hirer of a thing must repair all deteriorations or injuries thereto occasioned by his want of ordinary care." (Civ. Code, § 1929.) Defendants allege that Plaintiffs caused or permitted waste at the property, including but not limited to uncontrolled pest infestation, saturated and deteriorated subflooring, and willful neglect of fixtures and common areas. [Cross-Complaint ¶ 11.] Absent, however, is the specific action or inaction that caused the waste. Because there is a reasonable possibility that Defendants can cure this defect, they are granted leave to amend.

Fourth

Cause of Action: Breach of the Implied Covenant of Good Faith and Fair Dealing

Plaintiffs

contend that Defendants' breach of the implied covenant of good faith and fair dealing claim fails because it is barred by the litigation privilege and Defendants' allegations are conclusory.

The

good faith and fair dealing cause of action is barred by the litigation privilege. The litigation privilege bars a civil action for damages for communications made in any legislative or judicial proceeding or "in any other official proceeding authorized by law" (Civ. Code, § 47, subd. (b).) This extends to "a communication intended to prompt an administrative agency charged with enforcing the law to investigate or remedy a wrongdoing." (Hagberg v. Cal. Federal Bank (2004) 32 Cal.4th 350, 362.) Contrary to Defendants' assertion, their claim is premised on Plaintiffs' reports to the Los Angeles Housing Department regarding the conditions of Plaintiffs' tenancy. [Cross-Complaint ¶ 13.] The cause of action is therefore barred by the litigation privilege and the demurrer to this claim is sustained without leave to amend.

Fifth

Cause of Action: Abatement of Rent/Unjust Enrichment

Plaintiffs

argue that Defendants' cause of action for abatement of rent/unjust enrichment fails because neither offset nor unjust enrichment are causes of action.

The

demurrer to the abatement of rent/unjust enrichment cause of action is also sustained without leave to amend. Defendants allege that Plaintiffs were unjustly enriched during periods where they withheld rent while allegedly obstructing Defendants' compliance efforts. [Cross-Complaint ¶¶ 15-16.] They seek a disgorgement of the wrongfully withheld rent in equity or via "abatement setoff." [Id. ¶ 16.] As explained above, a setoff is not a cause of action. Neither is unjust enrichment. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231.) The cause of action also cannot be construed or amended as a restitution claim because an express contract governs Plaintiffs' rent obligations. (Id. at p. 231.) The demurrer to this claim is therefore sustained without leave to amend.

Sixth

Cause of Action: Intentional Interference with Repairs and Code Compliance

The

demurrer to the intentional interference with repairs and code compliance cause of action is sustained with leave to amend. As pled, this claim does not state a cognizable cause of action. However, there is a reasonable possibility that Defendants can amend their pleading to state a viable claim (e.g., Civil Code section 1954). Defendants are thus granted leave to amend.

Defendants

are granted 30 days' leave to amend. Defendants may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Defendants decline or fail to file an amended cross-complaint, Plaintiffs may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Plaintiffs

to give notice.